

1 ENGROSSED HOUSE
2 BILL NO. 3852

By: Roberts of the House

3 and

4 Bergstrom of the Senate

5
6
7 An Act relating to elections; amending 26 O.S. 2021,
8 Section 2-124, which relates to appointment of
9 inspector, judge, and clerk of election precincts;
10 directing the secretary of the county election board
11 to make appointments every two years; requiring
12 submission of nominees list with two times the number
13 of county precincts; modifying procedure in case of
14 insufficient nominees; limiting appointment of
15 nominees outside list provided by county central
16 committee; directing the Secretary of the State
17 Election Board to provide certain written
18 notification; amending 26 O.S. 2021, Section 2-131,
19 which relates to eligibility for membership on county
20 election board to serve as precinct official;
21 requiring precinct officials to swear and affirm oath
22 to follow the laws and procedures governing the
23 conduct of elections; directing the State Election
24 Board to prescribe oath; establishing that lawfully
removed precinct officials may not serve for period
of ten years; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 26 O.S. 2021, Section 2-124, is
amended to read as follows:

Section 2-124. A. The secretary of the county election board
shall appoint the inspector, judge and clerk of each precinct, to
serve terms of ~~four (4)~~ two (2) years each. The secretary's

1 appointments shall be made from the ranks of registered voters
2 within the county pursuant to the requirements of Section 2-123 of
3 this title.

4 B. 1. No later than June 15 of the year following a General
5 Election for Governor or President, the county central committees of
6 the two political parties with the highest number of registered
7 voters in the state, based on the latest January 15 registration
8 report, shall submit a list of nominees equal to ~~three~~ two times the
9 number of precincts in the county to the secretary of the county
10 election board.

11 2. a. The secretary of the county election board shall
12 utilize the list of nominees submitted by each party
13 to appoint one precinct official for each precinct
14 from each party no later than July 1 of the year
15 following a General Election for a Governor or
16 President. If no list is submitted by a county
17 central committee by the specified date, or if the
18 nominees are unable or unwilling to serve, or if the
19 nominees do not meet the eligibility requirements
20 described in Section 2-131 of this title, then the
21 secretary of the county election board shall appoint
22 from the ranks of said party within the county.

23 b. Provided, if the county central committee for a
24 political party submits a list by the specified date,

1 but fails to include the number of nominees required
2 by paragraph 1 of this subsection, then the secretary
3 of the county election board shall still utilize the
4 list of nominees for the appointment of precinct
5 officials if the nominees meet the eligibility
6 requirements described in Section 2-131 of this title.

7 3. No later than thirty (30) business days following the
8 deadline for a county central committee to submit the list of
9 nominees described in paragraph 1 of this subsection, the Secretary
10 of the State Election Board shall provide a written notification to
11 the state central committee of each political party about which of
12 that party's county central committees failed to submit the number
13 of nominees required by law, and cause the letter to be published on
14 the State Election Board website.

15 C. Terms shall begin July 1 of the year following a General
16 Election for Governor or President.

17 D. In the event of a vacancy, the secretary of the county
18 election board shall fill the unexpired term from within the ranks
19 of registered voters within the county in the manner described in
20 Section 2-123 of this title.

21 E. The secretary of the county election board shall maintain a
22 current list of all precinct officials, by their registered names
23 and which shall be available for precinct inspection by the public,
24 or provided by electronic means.

1 SECTION 2. AMENDATORY 26 O.S. 2021, Section 2-131, is
2 amended to read as follows:

3 Section 2-131. A. 1. To be eligible for membership on a
4 county election board or to serve as a precinct official, one must
5 be a registered voter of the county in which he or she will serve
6 and demonstrate competence to perform his or her duties.

7 2. No person shall be eligible for membership on a county
8 election board or to serve as a precinct official unless he or she
9 has sworn or affirmed an oath that the person will follow the laws
10 and procedures governing the conduct of elections. Said oath shall
11 be prescribed by the Secretary of the State Election Board.

12 3. No member or alternate member of a county election board, or
13 any precinct official, who has been removed from that office in the
14 manner provided by law, shall be eligible for membership on a county
15 election board, or to serve as a precinct official, for a period of
16 three (3) years from the date of the removal.

17 4. Persons thus qualified and appointed shall be trained in
18 their duties in a manner prescribed by the Secretary of the State
19 Election Board.

20 B. Notwithstanding the provisions of Section 481 of Title 21 of
21 the Oklahoma Statutes or any other provision of law, a secretary of
22 a county election board may temporarily appoint as a precinct
23 official, counter or absentee voting board member, an otherwise
24 qualified person who is related to the secretary within the second

1 or third degree by consanguinity or affinity. Provided, the
2 secretary of the county election board must receive written
3 permission from the Secretary of the State Election Board in order
4 to make such an appointment.

5 SECTION 3. This act shall become effective November 1, 2026.

6 Passed the House of Representatives the 24th day of March, 2026.

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Presiding Officer of the House
of Representatives

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11 Passed the Senate the ____ day of _____, 2026.

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Presiding Officer of the Senate

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